WHAT INDIAN LAWS SAY ABOUT...

WATCHING PORN

In India, viewing sexually explicit material in private spaces is not illegal. The Centre has, however, enforced bans on various porn websites from time to time. In 2015, the government banned 857 pornographic websites. Many of these are now operational again under new domain names. Last year as well, the government ordered internet companies to block 67 pornographic websites for violating the new IT rules issued in 2021.

PORN AND AGE

Section 293 of the Indian Penal Code (IPC) makes it illegal to sell, distribute, exhibit or circulate obscene objects to anyone under the age of 20 years.

PUBLISHING OR TRANSMITTING PORN

Section 67 of the IT Act makes it illegal to publish or transmit obscene material or material containing sexually explicit acts or conduct in electronic form. This material can be anything that is "lascivious or appeals to the prurient interest or if its effect is such as to tend to deprave and corrupt" people who read, see or hear it.

VIOLATION OF PRIVACY

Section 66E of the IT Act has provisions for punishing someone who "intentionally or knowingly captures, publishes or transmits the image of a private area of any person without his or her consent, under circumstances violating the privacy of that person".

SHOWING PORN TO WOMEN

Section 354A of the IPC includes in its definition of sexual harassment "showing pornography against the will of a woman".

SHOWING WOMEN IN PORN

The Indecent Representation of Women (Prohibition) Act, 1986, prohibits "indecent representation of women through advertisements or in publications, writings, paintings, figures or in any other manner".

CHILD PORN

Section 14 of the Protection of Children from Sexual Offences (POCSO) Act, 2012, makes it a crime to "use a child or children for pornographic purposes". The Act also makes it illegal to store or possess child pornography "for transmitting or propagating or displaying or distributing" it in any manner. Additionally, Section 67B of the IT Act makes it punishable for anyone to create, publish, transmit, promote, advertise or browse material depicting children in sexually explicit acts in electronic form. It also punishes those who cultivate or induce children to "online relationship with one or more children for and on sexually explicit act or in a manner that may offend a reasonable adult on the computer resource", and those who "facilitate abusing children online".

SALE OF SEX TOYS

There is no legal provision in India that expressly bars or permits the sale of sex toys. However, Section 292 of the IPC is often invoked to restrict the sale, exhibition, advertising, import or export of sex toys on the ground of "obscenity". Many sex toy sellers in India are able to operate as long as the product is not deemed "obscene"—by avoiding nudity in the packaging, or showing women in a demeaning manner, etc. They also label their products as 'sexual wellness' items.

RIGHT TO PRIVACY IN TERMS OF USING SEX TOYS

Right to sexual privacy is part of the law and the usage of sex toys in private is not expressly illegal, unless they are being given to a minor.

NON-CONSENSUAL USE OF SEX TOYS

For adults, the non-consensual usage of such toys is punishable under Section 376 (digital rape) and Section 377 of the IPC.

SAME-SEX COUPLES

Previously, Section 377 of the IPC criminalised what it termed "unnatural offences" or "voluntary carnal intercourse against the order of nature with any man, woman or animal". This was often used to punish homosexuals in India. In 2018, the SC decriminalised homosexuality. The ruling effectively allows gay sex among consenting adults in private spaces.

SAME-SEX MARRIAGE

Same-sex marriages are still not legalised in India, although there is a petition for the same in the SC currently.